

Ms. **Carol Arce Echeverría**
International Organizations
Department of Foreign Policy
Ministry of Foreign Affairs and Worship of Costa Rica
San José, Costa Rica

Dear Ms. Echeverría,

I have the pleasure to write to you on instructions from Ms. Karen Leiva, Chief, Office of International Cooperation and Relations, in reply to the question detailed below, to advise you of the following:

In reply to the Inter-American Juridical Committee's survey on international law and States' cyber operations "Improve Transparency," forwarded by the OAS, the Office forwarded it to the relevant authority for attention.

In that regard, the following reply was received from the Criminal Court of Appeals:

"On behalf of the Third Chamber and in reply to the request of the Ministry of Foreign Affairs and Worship, which forwarded to us a survey sent by the Organization of American States (OAS), specifically the Inter-American Juridical Committee, on international law and States' cyber operations: Improve Transparency, I wish to inform you, that upon specific analysis of the different items on which a view or technical opinion was requested, it was concluded that even when some of them do occur, such as, for example, the first, we can state that in 2012, by Decree No. 37052-MICIT, published in the official journal *La Gaceta* on March 9, 2012, the Information Security Incident Response Center (CSIRT-CR) was created, with headquarters at the facilities of the Ministry of Science and Technology.

"...with sufficient authorities to coordinate with the branches of government, autonomous institutions, companies, and banks of the State, all aspects of information technology security and cyber security and to define the team of experts on information technologies security that will work to prevent and respond to cyber and information technology incidents affecting government institutions." Available at:

http://www.gaceta.go.cr/pub/2012/04/13/COMP_13_04_2012.html#_Toc321989832), and that with a view to complementing the Costa Rican legal framework and improve action to counter cyber crime, Costa Rica acceded to the

"Convention on Cybercrime," known as the 2001 "Budapest Convention," by Law No. 9452, of May 26, 2017, by signing Executive Decree No. 40546-RREE, on July 3, 2017. Additionally, in 2017, the "National Cyber Security Strategy of Costa Rica" was published, whose section 3.3.5 establishes the following: *"...The aim of the CSIRT-CR is to implement and manage technological measures to mitigate the risk of attacks on the systems of the community to which service is provided, so that the cyber security and information technologies system is incorporated into the protection of the central government and autonomous entities in order to reduce cyber risks and threats. The Center reports to the Department of Digital Governance of the MICITT. However, at present its operations are limited owing to lack of public sector resources. The tasks carried out thus far have consisted primarily of generating capacities among public sector officials through different cyber security training activities ..."* (National Cyber Security Strategy of Costa Rica, San José: Costa Rica: MICITT, 2017, p. 28). (Available at: https://micit.go.cr/images/imagenes_noticias/10-11-2017_Ciberseguridad/Estrategia-Nacional-de-Ciberseguridad-Costa-Rica-19-10-17.pdf)

Therefore, specifically with regard to the question asked, as far as the Government of Costa Rica knows, no official document, statement, or similar declaration has been published that would summarize its understanding of the applicability of international law to cyber operations.

However, the survey as a whole makes evident a worrying reality: the urgent need for opportunities for study and analysis to be able to address successfully and effectively all problems that cyber operations might generate, not only to address attacks and how they should be countered, prevented, and punished, but also for study and analysis of the responsibility of States, even vis-à-vis non-state actors.

In that regard, we wish very respectfully to indicate the need to join forces to create appropriate opportunities so that countries like Costa Rica and others become involved in the study of this subject and make proposals, not only for international but also for domestic law, that can take a step towards dealing with a virtual reality with cross-border implications and the capacity to impact fundamental rights of the world's citizens."

Thank you for your attention to this matter and we are available for any consultation in that regard.

Yours sincerely,

Yonathan Alfaro Agüero

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De: Carol Arce Echeverría [<mailto:carce@rree.go.cr>]

Sent: Wednesday, April 3, 2019 09:21 a.m.

To: Office of International Cooperation and Relations, Judicial Branch

Subject: OAS: Survey on international law and cyber operations

To whom it may concern in the Judiciary,

I have the pleasure to write to you to forward a survey sent by the OAS, Inter-American Juridical Committee, on international law and States' cyber operations: Improve Transparency.

The member states are being requested to forward the duly completed survey by this coming June 28.

Thank you in advance for your kind collaboration.

Yours sincerely,

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